HOW TO TAG A LAW BY ITS EYES

NEW PROVISIONS	WHAT THE EARLIER LAW SAID	CAUSE FOR CONCERN	CENTRE'S DEFENCE
Identification measurements will be taken not only of convicts but also of anyone arrested or detained	Measurements can be taken only of convicts and anyone arrested for an offence punishable with RI of over a year	The government could use the provision against political detainees	Union home minister says it will be mandatory only for people accused of heinous crimes
Measurements include finger-, palm- and footprint impressions, photographs, iris and retina scans, physical, biological samples, plus behavioural attributes, including signatures, handwriting or any other examination referred to in the Code of Criminal Procedure, 1973	Measurements included photographs, fingerprints, and footprint impression	If biological samples or behavioural attributes include tests like brain mapping, lie detector tests or narco-analysis, it's a violation of the fundamental right to privacy	The government says rules will be framed to define crime categories for which 'measurements' will be applicable
The records can be retained in digital or electronic form for 75 years from the date of collection	No specific time-limit was mentioned	Such long record-keeping is unnecessary, violates people's right to be forgotten	Records will be destroyed if a person is acquitted or discharged without trial
Refusal to give measurements shall be deemed an offence under Section 186 of the Indian Penal Code	The old law said the same	Nobody can be forced to provide evidence against himself/ herself	Only accused in crimes against women/ children or for 7-year jail offences have to give biological samples
The NCRB can share and disseminate personal data with law enforcement agencies	Data used to remain with respective state governments or relevant jurisdictional authorities	The data collected could be misused for purposes other than the stated objective	Rules will be framed for the collection, storage, sharing, dissemination and destruction of data



Criminal Procedure, 1973. The government says all that will make investigations more efficient and help "increase the conviction rate". Significantly, the records can be retained in digital or electronic form for 75 years from the date of collection. The only rider there is a residual clause from the 1920 law, which provides relief if the alleged offender has no previous convictions or is subsequently acquitted or released without trial—all data will be expunged from the records in that case.

Updating forensic tools is of course a good idea, but the new Act also intervenes in that other layer, definable at the level of basic human freedoms the law is meant to protect. It introduces several controversial clauses: measurements can be taken not only of convicts and other accused but also of anyone "ordered to give security for his good behaviour…." The 'Statement of Objects and Reasons' of the new Act argues that it is "necessary to expand the ambit of persons whose measurements can be taken, as this will help the investigating agencies gather sufficient legally admissible evidence and establish the crime of the accused person". Resistance is futile—any refusal to allow the taking of measurements will see more charges added under Section 186 of the IPC (voluntarily obstructing a public servant in the discharge of duties). That said, biological samples can be forcibly taken only from persons accused or arrested for crimes against women or children or for any offence punishable with a minimum seven-year jail term. Union home minister Amit Shah adds another disclaimer—the Act will not be used against those arrested/ detained for staging political protests or for any other political reasons.

The Centre claims the Act's provisions will not be used against political protesters, but not many are convinced

Opposition leaders and civil rights activists are aghast and have demanded that the legislation be referred to a parliamentary standing committee. Intervening in the Lok Sabha discussion, Congress MP Manish Tewari called the law "draconian and against civil liberties". Tewari argued that the law was violative of Article 20, Sub-Article 3, which explicitly states that no accused person shall be compelled to be a witness against himself. Former Union home minister P. Chidambaram says that including tests like brain mapping, lie detector tests or narco-analysis within its ambit would make the law "unconstitutional". He cited two historic Supreme Court judgments—a 2010 verdict deeming those tests as violative of an individual's privacy, and the 2017 judgment that recognised privacy as a fundamental right. Trinamool Congress